

CHAPTER 17

Agriculture (Miscellaneous Provisions) Act, 1950

ARRANGEMENT OF SECTIONS

Grants for petrol-driven machines used for agricultural operations

Section

1. Schemes for making grants for petrol-driven machines used for agricultural operations.

Subsidies for use of fertilisers

2. Schemes for subsidising use of fertilisers.
3. Duration of schemes for subsidising use of fertilisers.

General

4. Making and alteration of schemes.
5. Expenses of administration.
6. Short title and interpretation.

An Act to authorise the payment out of moneys provided by Parliament of grants in respect of petrol-driven machines used in connection with agriculture and of contributions towards costs of providing fertilisers used for agricultural land; and for purposes connected therewith.
[28th July 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Grants for petrol-driven machines used for agricultural operations

Schemes for making grants for petrol-driven machines used for agricultural operations.

1.—(1) The appropriate Minister may, in accordance with a scheme made by him with the approval of the Treasury, make out of moneys provided by Parliament grants in respect of any petrol-driven machine used for agricultural operations in the United Kingdom, payable to the owner of the machine.

(2) A scheme under this section may provide for different rates of grants in different cases and make the payment of grants subject to any conditions and, in particular, may—

- (a) specify the kinds of machines in respect of which grants may be made and make different provision for different kinds of machines;
- (b) make grants conditional upon machines being put, or not being put, to specified uses and, in particular, prohibit grants in respect of machines used in connection with land of a specified kind;

- (c) provide for securing that no grant shall be made unless application therefor is made within the time and in the manner provided by the scheme.

(3) In this section the expression "petrol-driven machine" means any machine (including, in particular, an agricultural tractor) in which hydrocarbon oils (as defined in section two of the Finance Act, 1928) which are light oils (as so defined) are used either as the main fuel or as a subsidiary fuel.

(4) A person in the possession of a machine by virtue of a hire-purchase agreement (as defined in the Hire-Purchase Act, 1938) shall for the purposes of this section be treated as the owner of the machine.

In the application of this subsection to Scotland a reference to a contract to which the Hire Purchase and Small Debt (Scotland) Act, 1932, applies, or would apply if the limitation as to value contained in section one of that Act were omitted, shall be substituted for the reference to a hire-purchase agreement.

Subsidies for use of fertilisers

2.—(1) The appropriate Minister may, in accordance with a Scheme for subsidising use of fertilisers, make out of moneys provided by Parliament contributions towards the costs incurred by an occupier of agricultural land in the United Kingdom in acquiring and transporting fertilisers used on that land when—

- (a) it is under grass; or
- (b) it has been ploughed up from grass.

(2) Contributions shall not exceed—

- (a) in the case of land under grass, one-third of the said costs; and
- (b) in the case of land ploughed up from grass, two-thirds of the said costs.

(3) A scheme under this section may restrict the amount of contributions in any manner and make the payment of contributions subject to any conditions, and may, in particular—

- (a) specify the kinds of fertilisers and the kinds of agricultural land in respect of which contributions may be made, and make different provision for different kinds of fertilisers and for different kinds of agricultural land;
- (b) limit contributions to a specified sum to the acre;
- (c) provide that where, in any agricultural unit defined by the scheme, the land of a specified kind on which fertilisers are used within a specified period exceeds a specified proportion of all the land of that kind in the unit, no contribution shall be made in respect of the excess;

- (d) provide that in respect of agricultural land designated by the scheme as land where it may be doubtful whether the application of fertilisers would be satisfactory, or where the manner of applying them needs special consideration, contributions may only be made where the Minister approves of the use of fertilisers and where the fertilisers are used in a manner approved by him in advance;
 - (e) authorise the Minister to withhold contributions where in his opinion the fertilisers have not been used economically or to the best advantage;
 - (f) authorise the Minister to withhold contributions for fertilisers used on land under grass where in his opinion the occupier of the land has an excessive proportion of land under grass, having regard to local conditions and, in particular, to the type of farming carried on in the locality;
 - (g) provide that contributions shall only be made in respect of fertilisers used on land when it has been ploughed up—
 - (i) where the land was under grass for a specified period before that ploughing up;
 - (ii) where the fertilisers were used within a specified period after that ploughing up;
 - (h) provide for leaving out of account costs of transporting fertilisers in excess of rates ascertained by reference to the cost of acquiring the fertilisers or to the distance over which they were transported or ascertained in any other manner;
 - (i) prohibit contributions in respect of expenditure below a minimum ascertained in a specified manner;
 - (j) provide for securing that no contribution shall be made unless application therefor is made within the time and in the manner provided by the scheme.
- (4) A scheme under this section may provide for treating as agricultural land any land on which fertilisers are used with a view to bringing it into agricultural use.

(5) In this section—

“ the Minister ” means, as respects England and Wales and Northern Ireland, the Minister of Agriculture and Fisheries and, as respects Scotland, the Secretary of State;

references to land under grass include references to any grazing land and, in particular, to land under clover or lucerne or mixtures of clover or lucerne with grass.

3.—(1) Contributions under the last foregoing section shall be made only where the sale, and any agreement for the sale, of the fertilisers to the occupier of the land was made, and where the fertilisers were used on the land, within the period specified in this section. Duration of schemes for subsidising use of fertilisers.

(2) The said period is that beginning on the first day of July, nineteen hundred and fifty, and ending on the thirtieth day of June, nineteen hundred and fifty-three:

Provided that the said period may be extended once by an order made by the Minister of Agriculture and Fisheries and the Secretary of State acting jointly and subject to the approval of the Treasury so as to end on a date specified in the order, being a date not later than the thirtieth day of June, nineteen hundred and fifty-five.

The power of making an order under this proviso shall be exercisable by statutory instrument and no such order shall be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

General

4.—(1) A scheme under this Act may be a separate scheme for England and Wales, or for Scotland or for Northern Ireland, or may be a joint scheme for all three countries or for any two of those countries. Making and alteration of schemes.

(2) The power to make a scheme under this Act shall be construed as including power to vary or revoke the scheme by a subsequent scheme.

(3) The power to make, vary or revoke a scheme under this Act shall be exercisable by statutory instrument.

(4) A statutory instrument making, varying or revoking a scheme under section one of this Act shall not be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

(5) A statutory instrument making, varying or revoking a scheme under section two of this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

5. Any expenses of administration incurred by any Minister for the purposes of any scheme under this Act shall be paid out of money provided by Parliament. Expenses of administration.

6.—(1) This Act may be cited as the Agriculture (Miscellaneous Provisions) Act, 1950. Short title and interpretation.

(2) In this Act—

“ the appropriate Minister ” means—

(a) in relation to a separate scheme for England and Wales or for Northern Ireland or a joint scheme for

England and Wales and Northern Ireland, the Minister of Agriculture and Fisheries;

(b) in relation to any other joint scheme, the Minister of Agriculture and Fisheries and the Secretary of State acting jointly;

(c) in relation to a separate scheme for Scotland, the Secretary of State;

except where the context otherwise requires, “specified” means specified by a scheme under this Act.

Table of Statutes referred to in this Act.

Short Title.	Session and Chapter.
Finance Act, 1928	18 & 19 Geo. 5. c. 17.
Hire Purchase and Small Debt (Scotland) Act, 1932	22 & 23 Geo. 5. c. 38.
Hire Purchase Act, 1938	1 & 2 Geo. 6. c. 53.

CHAPTER 18

An Act to amend the Cinematograph Film Production (Special Loans) Act, 1949, as respects the permitted maximum aggregate amount of principal outstanding in respect of advances made by the Board of Trade to the National Film Finance Corporation.

[28th July 1950.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment of s. 4 of the Cinematograph Film Production (Special Loans) Act, 1949.
12, 13 & 14 Geo. 6. c. 20.

1. In subsection (1) of section four of the Cinematograph Film Production (Special Loans) Act, 1949 (which makes provision for the Board of Trade, with the consent of the Treasury, to make advances to the National Film Finance Corporation within the five years beginning with the passing of that Act and limits the aggregate amount of the principal outstanding in respect of any such advances to five million pounds), for the words “five million pounds” there shall be substituted the words “six million pounds”.

Short title and citation.

2.—(1) This Act may be cited as the Cinematograph Film Production (Special Loans) Act, 1950.

(2) This Act and the Cinematograph Film Production (Special Loans) Act, 1949, may be cited together as the Cinematograph Film Production (Special Loans) Acts, 1949 and 1950.